

Court No. - 3

Case :- WRIT - C No. - 8550 of 2022

Petitioner :- Vijaypal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jata Shankar Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Deepak Verma,J.

Heard Sri Jata Shankar Pandey, learned counsels for the petitioner, learned Standing Counsel for the respondent nos.1 & 4, Sri Baleshwar Chaturvedi, learned counsel for the respondent nos.2 & 3.

This writ petition has been filed praying for the following relief:

"(i) Issue, a writ order, or direction in the nature of certiorari to quash the recovery proceeding in pursuance of recovery certificate dated 01.10.2020 issued by respondent no.2 for Rs.1,86,961.00 (Contained as Annexure No.6 to this writ petition).

(ii) Issue a writ order of direction in the nature of mandamus commanding the respondents not to harass the petitioner in pursuance of the recovery certificate dated 01.10.2020."

Sri Baleshwar Chaturvedi, learned counsel for the respondent No.2 & 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this **writ petition is disposed off** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 30.5.2022

SKD